

24VECV02040 24VECV02040

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24VECV02040 Hearing Date: July 13, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

CARLOS GONZALEZ, an
individual;

ANGELICA GONZALEZ, an individual; CARLOS
GONZALEZ DE JESUS, an individual; EVELYN GONZALEZ a minor by and through her
guardian ad litem, Angelica Gonzalez; ANTHONY GONZALEZ, a minor by and
through his guardian ad litem, Angelica Gonzalez; KIMBERLY GONZALEZ, a minor by
and through her guardian ad litem, Angelica Gonzalez; YARITZA GONZALEZ, a
minor by and through her guardian ad litem, Angelica Gonzalez; JAIME CRUZ, an
individual; JONATAN CRUZ, an individual; ALEXANDER CRUZ, a minor by and
through his guardian ad litem, Jaime Cruz;

Plaintiffs,

vs.

GORGIS
ESTATE VENTURES INC.

(formerly
known as A AND J APARTMENTS, INC., a California Corporation); MARIA HERNANDEZ,
an individual; RAUL ZARAGOZA, an individual; KORKIS LIVING TRUST; and DOES 2 through
100 inclusive;

Defendants.

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CASE NO.: 24VECV02040

ORDER
GRANTING PLAINTIFFS' MOTION
FOR

LEAVE
TO FILE A SECOND AMENDED COMPLAINT

GORGIS
ESTATE VENTURES INC.

(formerly
known as A AND J APARTMENTS, INC., a California Corporation);

Cross-Complainant,

14662 RAYEN STREET, LLC, a California Limited
Liability Company, and ROES 1 through 10, inclusive;

Cross-Defendants.

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I.

BACKGROUND

This case arises out of habitability and harassment claims brought by two

groups of tenants,

Carlos Gonzalez, et al. ("Gonzalez Plaintiffs") and Maria Corona, et al.

("Corona Plaintiffs"), against their former landlord, A AND J Apartments, Inc. ("A AND J"), and property managers Maria Hernandez and Raul Zaragoza (collectively, "Original Defendants"). Plaintiffs allege they experienced uninhabitable and hazardous living conditions at 14662 W. Rayen Street, Panorama City, California (herein, "Subject Property"), including mold contamination, raw sewage exposure, and vermin infestations, many of which allegedly continue to the present day. (See Gonzalez First Amended Complaint ("Gonzalez FAC"), ¶¶ 16-21, 32-35; Corona First Amended Complaint ("Corona FAC") (collectively, "FACs").)

On March 7, 2025, A AND J filed Cross-Complaints in both actions, asserting causes of action for equitable indemnity, contribution, implied indemnity, declaratory relief, and apportionment of fault against 14662 Rayen Street LLC ("Rayen"), the current owner of the subject property. A AND J has cross-complained, alleging any liability imposed upon it would be derivative of Rayen's own wrongdoing, as Rayen has owned the property since September 8, 2023, and Plaintiffs allege that the habitability violations continue to the present day. (See A AND J Cross-Complaint ¶¶ 1-2, 6.)

Plaintiff now

seeks leave of this Court to file a second amended complaint.

II.

PROCEDURAL

HISTORY

On May 1,

2024, the Gonzalez Plaintiffs filed

their Complaint in Los Angeles Superior Court, Case No. 24VECV02040, alleging (1)

Breach of the Warranty of Habitability; (2) Negligence; (3) Negligent Hiring,

Supervision, and Retention; (4) Breach of Quiet Enjoyment; (5) Nuisance; (6)

Intentional Infliction of Emotional Distress; (7) Violation of Business and

Professions Code § 17200; (8) Violation of the Los Angeles Tenant

Anti-Harassment Ordinance; and (9) Violation of Civil Code § 1942.4 against

Defendants A AND J Apartments, Inc, Maria Hernandez, and Raul Zaragoza.

On May 1,

2024, the Corona Plaintiffs filed their Complaint in Los Angeles Superior

Court, Case No. 24VECV02041, asserting the same nine causes of action against

the same Defendants.

On November 4, 2024, Defendant Gorgis Estate

Ventures Inc. (formerly known as A and J Apartments, Inc.) ("Gorgis") filed its

Answer in both the Gonzalez and Corona matters.

On January 6,

2025, the Gonzalez Plaintiffs and the Corona Plaintiffs filed their respective

First Amended Complaints in both actions alleging the same nine causes of action

in both actions, which remain

the operative pleadings.

On January 16, 2025, Defendants Maria Hernandez and

Raul Zaragoza filed their Answer in both the Gonzalez and Corona matters.

On February 4, 2025, Defendant Gorgis filed its

Answer in both the Gonzalez and Corona matters.

On March 7,

2025, Defendant Gorgis Estate Ventures Inc. (formerly known as A and J Apartments, Inc.) filed Cross-Complaints in both the Gonzalez and Corona matters against 14662 Rayen Street LLC ("Rayen"), asserting claims for (1) Equitable Indemnity; (2) Contribution; (3) Implied Indemnity; (4) Declaratory Relief; and (5) Apportionment of Fault.

On March 18, 2025, the Court granted the parties' joint stipulation to consolidate the Gonzalez and Corona Matters into one matter.

On June 24, 2025, Plaintiffs filed an Amendment to Complaint (Fictitious/ Incorrect Name), substituting Korkis Living Trust for DOE 1.

On August 11, 2025, the Court overruled 14662 Rayen Street LLC's Demurrer to Defendant Gorgis' Cross-Complaint.

On August 20, 2025, Cross-Defendant 14662 Rayen Street LLC filed its Answer.

On October 2, 2025, Defendant Korkis Living Trust filed its Answer.

On November 19, 2025, the Court granted the parties' joint stipulation re name change of Defendant Gorgis.

On June 15, 2026, Plaintiffs filed the instant Motion for Leave to File a Second Amended Complaint.

As of July 10, 2026, no opposition has been filed.

III.

LEGAL STANDARD

Code of Civil

Procedure § 473(a)[1] provides: "The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time

limited by this code.” (Code Civ. Proc. § 473(a)(1); see also Code Civ. Proc. § 576.)

The court has broad discretion to permit amendments to pleadings, and “the court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Id.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion for leave to amend a pleading must comply with the procedural requirements of Rules of Court, rule 3.1324, under which the motion must include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Rules of Court, rule 3.1324(a), (b).)

IV.

ANALYSIS

After reviewing Plaintiffs’ Motion, the Court finds the motion is in compliance with Rule of Court, rule 3.1324(a) and (b). Plaintiffs represent they moved for leave promptly after depositions completed in the spring of 2026 confirmed 14662 Rayen Street LLC’s notice of and failure to remediate the alleged uninhabitable conditions during its ownership. (See Mot. at 11:2-4; Rules of Court, rule 3.1324(b)(3)-(4).) Moreover, 14662 Rayen Street LLC has been a party to this action since March 7, 2025, has appeared through counsel, responded to the pleadings, and participated in discovery. With trial set for October 12, 2026, the Court finds the proposed amendment will not result in undue delay or prejudice, as 14662 Rayen Street LLC has long been aware of the underlying allegations and will have ample opportunity to prepare its defense before trial. Further, Plaintiffs’ counsel provides a declaration attesting to the above and attaches a proposed second amended complaint in compliance with

Rules of Court, rule 3.1324.

Accordingly, Plaintiff's
unopposed Motion is GRANTED.

V.

CONCLUSION

Based on the
foregoing, the Court GRANTS Plaintiffs' Motion
for Leave to File a Second Amended
Complaint. Plaintiffs are ordered to file and serve the proposed second amended
complaint on or before July 16,
2026.

IT IS SO
ORDERED.

DATED: July 13, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.